

who were present; and John de Lokton, who was appointed his successor within two months, was the only serjeant-at-law who seems to have been summoned on the occasion. The judges of the Common Pleas were Chief Justice Robert de Bealknap, William de Skipwith, Roger de Fulthorpe, John Holt, and William Burgh; all of whom attended except William de Skipwith, who was either ill at the time, or perhaps, suspecting the object, pretended to be so. The chief baron, Sir John Cary, was the only member of the Court of Exchequer who was present. The other barons were probably not summoned, as we have seen that they were not looked upon as lawyers, nor could they act as judges of assize.

Whether the answers to the questions propounded were voluntarily given by the judges, or were forced from them under threats and fears of violence, as they afterwards alleged in their defence, may, with regard to some of them, admit of question; but all their seals were attached to the document declaring their opinions, which was dated at Nottingham, on August 25. In November the conspiring favourites were appealed of treason by the Duke of Gloucester and four earls; one of the charges against Tresilian and the rest being, that they constrained the judges to subscribe the answers to these questions. The trial of the appeal was put off till the next parliament, which was fixed to be held on February 2, 1388. Before that day both the chiefs were removed; and on the first day of the session the rest of the judges, except Skipwith, were arrested in open court, and sent prisoners to the Tower.

The proceedings against Tresilian are detailed in a subsequent page. He was condemned to die the death of a traitor, and suffered on February 19. The other judges on March 2 were impeached by the Commons; and, though all of them pleaded constraint, they were convicted and